

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KAHLIL BERRY,

Plaintiff,

-against-

THE CITY OF NEW YORK and
NYPD DETECTIVE ANTHONY AHWAL,

Defendants.

----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 27, 2018

SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

The City of New York, c/o Corporation Counsel, 100 Church Street, New York, NY 10007

NYPD Detective Anthony Ahwal: c/o NYPD Gun Violence Suppression Division, Zone 1,
c/o One Police Plaza, 12th Floor, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
KAHLIL BERRY,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
NYPD OFFICER ANTHONY AHWAL,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and the defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).

4. That at all times herein mentioned, defendant NYPD Detective Anthony Ahwal (hereinafter “Ahwal”) was a police officer employed by the NYPD, and currently is a police

detective employed by the NYPD.

5. That at all times herein mentioned, Ahwal was acting within the course and scope of his employment with the NYPD.

6. That at all times herein mentioned, Ahwal was acting under color of state law.

THE FACTS

7. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

8. That on December 28, 2016, in the County of Kings, City and State of New York, NYPD officers, including but not limited to Ahwal, without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime, and without a warrant, forcibly stopped plaintiff's motor vehicle, directed plaintiff to exit his motor vehicle, and searched plaintiff and his motor vehicle without plaintiff's consent.

9. That thereafter Ahwal and the other officers (hereinafter referred to collectively as "the officers") forcibly handcuffed plaintiff and otherwise used force against plaintiff that was unreasonable and unnecessary under the circumstances.

10. That thereafter the officers arrested plaintiff without a warrant and without probable cause, and imprisoned and/or caused plaintiff to be imprisoned at various locations, including a police precinct, Central Booking, and Riker's Island Correctional Facility.

11. That on or about December 29, 2016, Ahwal initiated and/or caused to be initiated against plaintiff a criminal prosecution, charging plaintiff with crimes of which he was innocent and of which Ahwal knew plaintiff to be innocent.

12. That in support of the aforementioned prosecution, Ahwal signed a Criminal

Court Complaint in which he made allegations against plaintiff that were untrue and that he knew to be untrue.

13. That in support of the aforementioned prosecution, Ahwal conveyed false information and statements to the Office of the District Attorney, including but not limited to a statement that an individual named Derek Edey identified plaintiff as someone who cut Edey and that Edey asserted that plaintiff cut Edey with a box cutter.

14. That the aforementioned false information and statements by Ahwal constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

15. That as a result of the false criminal charges that were initiated against plaintiff by Ahwal and the false information and statements made by Ahwal, plaintiff was incarcerated, was required to make court appearances, and suffered a deprivation of his liberty.

16. That on or about January 26, 2017, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

17. That defendants' actions were intentional, malicious, and without excuse of justification.

18. That as a result of the actions of defendants, plaintiff sustained severe emotional distress, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, and sustained other damages.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery)

19. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

20. That the aforementioned actions of defendants constitute an assault and battery, for which Ahwal and the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

21. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

22. That the aforementioned actions of defendants constitute a false arrest and false imprisonment of plaintiff, for which Ahwal and the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution)

23. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

24. That the aforementioned actions of defendants constitute a malicious prosecution of plaintiff, for which Ahwal and the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST AHWAL
(42 USC § 1983: Fourth and Fourteenth Amendment Violations)

25. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

26. That the aforementioned actions of Ahwal constitute illegal searches and seizures of plaintiff and deprivation of liberty of plaintiff, in violation of rights guaranteed to

plaintiff under the Fourth Amendment and Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FIFTH CAUSE OF ACTION AGAINST AHWAL
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforesaid actions by Ahwal constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training and Retention)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

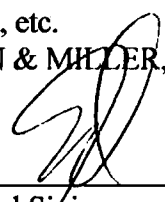
30. That the aforesaid incidents and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of Ahwal and the other officers.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendant Ahwal, and attorney's fees against all defendants

pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
March 27, 2018

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

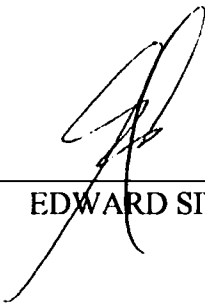
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
March 27, 2018



EDWARD SIVIN

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Year 2018

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Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff

20 Vesey St., Suite 1400

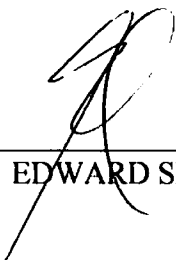
New York, NY 10007

(212) 349-0300

FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
March 27, 2018